

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shadman Khan	Team: Squad #12	CCRB Case #: 202202427	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 04/15/2022 8:40 PM	Location of Incident: Nostrand Avenue and Lexington Avenue	18 Mo. SOL 10/15/2023	Precinct: 79		
Date/Time CV Reported Fri, 04/15/2022 9:30 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 04/15/2022 9:35 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Alex Ramos	01480	947941	PSA 3
2. PO Hinolito Inoa	16168	960709	079 PCT
3. PO Aaron Husbands	04274	965752	079 PCT
4. PO Mohammad Abdelfattah	00603	965915	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Pascual Melo	06249	966218	PSA 3
2. PO Isaiah Salcedo	10520	962077	PSA 3

Officer(s)	Allegation	Investigator Recommendation
A. PO Hinolito Inoa	Abuse: Police Officer Hinolito Inoa frisked § 87(2)(b)	
B. PO Hinolito Inoa	Abuse: Police Officer Hinolito Inoa searched § 87(2)(b)	
C. PO Hinolito Inoa	Abuse: Police Officer Hinolito Inoa frisked § 87(2)(b)	
D. PO Hinolito Inoa	Abuse: Police Officer Hinolito Inoa searched § 87(2)(b)	
E. PO Aaron Husbands	Abuse: Police Officer Aaron Husbands questioned § 87(2)(b)	
F. PO Aaron Husbands	Abuse: Police Officer Aaron Husbands frisked § 87(2)(b)	
G. PO Aaron Husbands	Abuse: Police Officer Aaron Husbands frisked § 87(2)(b)	
H. PO Aaron Husbands	Abuse: Police Officer Aaron Husbands searched § 87(2)(b)	
I. PO Hinolito Inoa	Abuse: Police Officer Hinolito Inoa searched the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	
J. PO Mohammad Abdelfattah	Abuse: Police Officer Mohammad Abdelfattah damaged § 87(2)(b) s property.	

Officer(s)	Allegation	Investigator Recommendation
K.SGT Alex Ramos	Abuse: Sergeant Alex Ramos threatened to arrest an individual.	
L.PO Mohammad Abdelfattah	Abuse: Police Officer Mohammad Abdelfattah refused to provide his shield number to § 87(2)(b)	

Case Summary

On April 15, 2022, § 87(2)(b) filed this complaint with the CCRB via the online website on behalf of himself, § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and an unidentified individual.

On April 15, 2022, at approximately 8:40p.m., at the intersection of Nostrand Avenue and Lexington Avenue in Brooklyn, PO Hinolito Inoa and PO Aaron Husbands from the 79th Precinct stopped a vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants due to a violation of the NYS Vehicle and Traffic Law. Sgt. Alex Ramos, PO Mohammed Abdelfattah, and PO Pascual Melo from PSA3 arrived on scene as backup upon observing the stop. PO Inoa instructed the occupants to exit the vehicle. Upon exiting, PO Inoa frisked and searched § 87(2)(b) (**Allegations A and B: Abuse of Authority, § 87(2)(g)**). PO Inoa frisked § 87(2)(b) and entered his pocket to remove a knife (**Allegation C: Abuse of Authority, § 87(2)(g)**). **Allegation D: Abuse of Authority, § 87(2)(g)**. PO Husbands questioned and frisked § 87(2)(b) (**Allegations E and F: Abuse of Authority, § 87(2)(g)**). PO Husbands frisked and searched § 87(2)(b)'s pocket (**Allegation G-H: Abuse of Authority, § 87(2)(g)**).

PO Inoa searched § 87(2)(b)'s vehicle and trunk (**Allegation I: Abuse of Authority, § 87(2)(g)**). The occupants were allowed back into the vehicle while PO Inoa searched the trunk of the vehicle. After the search of the vehicle and trunk, officers were unable to close the trunk. PO Abdelfattah used a knife and damaged the trunk of § 87(2)(b)'s vehicle (**Allegation J: Abuse of Authority, § 87(2)(g)**). Sgt. Ramos approached an unidentified individual on the street and threatened to arrest him (**Allegation K: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) asked PO Abdelfattah for his shield number, who did not provide it and instead provided a fake number (**Allegation L: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) received a summons § 87(2)(a) 160.50, § 87(2)(b) received a summons § 87(2)(b), § 87(2)(b) received a summons § 87(2)(a) 160.50, and § 87(2)(b) received a summons § 87(2)(a) 160.50.

The investigation received six body worn camera (BWC) videos regarding this incident (Board Review 1-6). The investigation also received four cellphone recorded videos regarding the incident (Board Review 07 – Board Review 10).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Hinolito Inoa frisked § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Hinolito Inoa searched § 87(2)(b)

In his statement to the CCRB, § 87(2)(b) stated that he had just visited his aunt and entered his vehicle with three passengers: § 87(2)(b), § 87(2)(b), and § 87(2)(b). After letting several vehicles drive past § 87(2)(b)'s vehicle, § 87(2)(b) drove to the intersection as well and stopped at a red light. As soon as § 87(2)(b) stopped his vehicle, the unmarked vehicle turned on their vehicle lights and multiple officers, including PO Inoa and PO Husbands, approached § 87(2)(b). Once he stopped his vehicle, PO Inoa approached § 87(2)(b) and asked him for his license and registration. After some time, § 87(2)(b) provided the license and registration. PO Inoa took the license and registration back to his vehicle and returned shortly after. Once he returned, PO Inoa instructed § 87(2)(b) to step out of the vehicle. The other occupants of the vehicle were also instructed to step out of the vehicle. No reason was provided. Once § 87(2)(b) exited the vehicle, PO Inoa frisked § 87(2)(b) all over his body, including his socks. PO Inoa also searched § 87(2)(b)'s pockets and

removed objects as well (Board Review 12).

In PO Inoa's BWC video, at 01m02s, PO Inoa approaches the driver side of the stopped vehicle. At 01m17s, § 87(2)(b) asks PO Inoa for the reason he is stopping him. After instructing § 87(2)(b) to turn the car off, PO Inoa explains that § 87(2)(b) is missing the front plate and has tints. § 87(2)(b) then provides his identification to PO Inoa. At 05m18s, PO Inoa repeatedly instructs § 87(2)(b) to step out of the vehicle. § 87(2)(b) repeatedly asks why he had to step out of the vehicle, to which PO Inoa states because he is conducting a car stop. At 06m43s, § 87(2)(b) opens the driver door, steps outside, and walks towards the rear of the vehicle and leans on it. PO Inoa is not seen frisking or searching § 87(2)(b) when he stepped out of the vehicle (Board Review 02).

§ 87(2)(b) exiting his vehicle is also captured from a different angle in PO Melo's BWC Video (Board Review 03). The video also shows that PO Inoa did not frisk or search § 87(2)(b).

In his statement to the CCRB, PO Inoa stated he observed that § 87(2)(b)'s vehicle did not have any front license plates and had illegally tinted windows. Based on these observations, PO Inoa made the decision to stop the vehicle. Once the vehicle was stopped, he and PO Husbands approached the vehicle. PO Inoa obtained § 87(2)(b)'s driving credentials and explained the reason for the stop. As PO Inoa spoke to § 87(2)(b) another officer ran the driver license on his phone and saw that the vehicle was uninsured. At this time, PO Inoa asked § 87(2)(b) to step out of the vehicle because he had trouble communicating with him due to the traffic noise, the screaming from the other occupants, and overall commotion. PO Inoa wished to speak to § 87(2)(b) in the back of the vehicle to deescalate the situation. § 87(2)(b) initially questioned why he had to step out of the vehicle, but he eventually complied. PO Inoa had § 87(2)(b) move to the back of the vehicle. PO Inoa did not frisk or search § 87(2)(b) at any point (Board Review 16).

§ 87(2)(b), § 87(2)(g)

Allegation (C) Abuse of Authority: Police Officer Hinolito Inoa frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Hinolito Inoa searched § 87(2)(b)

According to § 87(2)(b) PO Inoa approached § 87(2)(b) and asked him for his registration and insurance. § 87(2)(b) informed PO Inoa that he did not have his insurance because of an ongoing dispute between him and the insurance company. PO Inoa told § 87(2)(b) that he was lying about his insurance. After taking identification cards from all of the occupants of the vehicle, PO Inoa instructed all of them to exit the vehicle. When § 87(2)(b) exited the vehicle, PO Inoa grabbed and searched his waist area. § 87(2)(b) had a box cutter that was attached to his waist that was not visible to the officers. When PO Inoa searched his waist, he took the box cutter from him. PO Inoa frisked § 87(2)(b) and entered his pockets. § 87(2)(b) was then taken to the back of the vehicle (Board Review 13).

The investigation received C-Summons § 87(2)(b), prepared by PO Inoa and issued to § 87(2)(b)

§ 87(2)(a) 160.50

In PO Inoa's BWC, at 07m24s of the video, § 87(2)(b) wearing a white hooded sweatshirt, is seen exiting the driver side rear passenger seat of the vehicle. He then immediately turns around and raises his hands. At 07m29s, a silver shining object is seen at the waistband area of § 87(2)(b)'s pants. It is unclear what the object is based on the video. Sgt. Ramos holds § 87(2)(b) by the waist

as PO Inoa moves forward and states, “He got a knife right here.” § 87(2)(b) immediately responds, “Yea I do.” PO Inoa appears to lift § 87(2)(b) sweater and grabs the silver shining object from the waistband area and takes it away. § 87(2)(b) is heard affirming, “Yea, I have a fucking knife.” PO Inoa does not frisk § 87(2)(b) at any point (Board Review 02).

According to PO Inoa, after § 87(2)(b) exited the vehicle, he saw § 87(2)(b) exiting the rear driver seat. PO Inoa noticed a knife on § 87(2)(b) body. PO Inoa recalled that the knife was either in § 87(2)(b) pocket or his waistband area but was more certain that it was in his pocket. PO Inoa only noticed the handle and knew that the object was a knife based on his experience as a police officer. PO Inoa did not see any bulges in § 87(2)(b) pockets, but simply saw the handle of the knife. PO Inoa did not recall the size of the knife. PO Inoa did not recall what type of knife it was. PO Inoa immediately grabbed the knife and confiscated it. PO Inoa did not reach inside of the pocket and only grabbed the knife from the handle. PO Inoa did not frisk or search any occupant during the incident (Board Review 16).

It shall be unlawful for any person in a public place, street, or park, to wear outside of his or her clothing or carry in open view any knife with an exposed or unexposed blade unless such person is actually using such knife for a lawful purpose. NYC Administrative Code 10-133 (Board Review 36).

An officer’s sole observation of a clip attached to a defendant’s pants pocket does not, as a matter of law, establish reasonable suspicion that defendant is in possession of a gravity knife to justify the search of the defendant. Additionally, the court also found that the clip could have represented multiple innocuous items it could have contained, and that the defendant gave no reason to believe they were armed and dangerous, therefore granting the motion to suppress the physical evidence. People v. Cruz 39 Misc. 3d 52 (Board Review 32).

During investigative encounters, when a frisk of an individual reveals an object that an officer reasonably suspects may be a weapon, the officer is permitted to search those interior portions of the individual’s clothing to remove the weapon. Patrol Guide, Procedure 212-11 (Board Review 30).

§ 87(2)(b), § 87(2)(g)

PO Inoa articulated that he did not see any bulges on § 87(2)(b) pants and knew the clip was attached to a knife based on his experience as a police officer. § 87(2)(b), § 87(2)(g)

Allegation (E) Abuse of Authority: Police Officer Aaron Husbands questioned § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Aaron Husbands frisked § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Aaron Husbands frisked § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Aaron Husbands searched § 87(2)(b)

§ 87(2)(b) was uncooperative and did not provide the investigation with a statement (see IAs for contact attempts).

According to § 87(2)(b) after the vehicle was stopped, multiple officers asked every occupant of the vehicle for their identification cards. Once all occupants provided the officers with an identification card, one of the officers instructed § 87(2)(b) to step out of the vehicle. Officers asked all occupants to step out of the vehicle. After § 87(2)(b) stepped out of the vehicle, PO Husbands frisked him. During the frisk, PO Husbands felt an object inside of § 87(2)(b)'s pocket. When PO Husbands asked § 87(2)(b) what it was, § 87(2)(b) explained that it was a knife. PO Husbands reached into the pocket and removed the knife. After the frisk and search, PO Husbands stood next to § 87(2)(b) (Board Review 14).

The investigation received C-Summons § 87(2)(b), prepared by PO Husbands and issued to § 87(2)(b).
§ 87(2)(a) 160.50

In PO Husbands' BWC video, at 06m56s, the front passenger door is opened, and PO Husbands informs § 87(2)(b) (seated in the front passenger seat) that he has to step out. Once he steps out, PO Husbands asks § 87(2)(b) if he has any weapons on his person. § 87(2)(b) denies having any weapons. PO Husbands then asks if he could frisk § 87(2)(b). § 87(2)(b) raises both arms and holds them out to the side in response. PO Husbands feels the front jacket pockets and pant pockets and has § 87(2)(b) move to the rear of the vehicle. At 07m33s, PO Husbands instructs § 87(2)(b) (seated in the rear passenger side) to step out and leave everything inside of the vehicle. He then opens the door and instructs § 87(2)(b) to put his hands up as he steps out. § 87(2)(b) raises both arms up to shoulder level. PO Husbands places his right arm on § 87(2)(b)'s left waist and moves his right hand to § 87(2)(b)'s right pants pocket area. § 87(2)(b) says, "That's my knife. It's just a little one. You can pull it out. I use it for work." The knife is seen in PO Husbands' left hand as it is placed on the roof of the vehicle. § 87(2)(g)
§ 87(2)(b) PO Husbands is then seen placing his hands on § 87(2)(b)'s front pant pockets and feeling around the waist area. § 87(2)(b) is then moved to the rear of the vehicle (Board Review 01).

PO Abdelfattah's BWC video is similar to PO Husband's BWC video and provides a slightly different viewpoint. At 06m57s, PO Husbands is seen pulling the knife off the right pocket/waistband area of § 87(2)(b). § 87(2)(g)
The knife is placed on the roof of the vehicle and PO Husbands finishes the frisk by patting § 87(2)(b)'s front pant pockets (Board Review 05).

According to PO Husbands, all occupants were instructed to step out of the vehicle. PO Husbands had safety concerns because there were four people inside of the vehicle. § 87(2)(g)
§ 87(2)(b) Once PO Husbands gave the instruction to step out, § 87(2)(b) exited on his side. PO Husbands asked § 87(2)(b) for consent to frisk him, which he provided. PO Husbands explained that he only frisked § 87(2)(b) because he received consent. PO Husbands only touched the front pockets, waist, and side pockets of § 87(2)(b). PO Husbands then asked § 87(2)(b) to step out of the vehicle. PO Husbands saw that § 87(2)(b) had a knife in plain view clipped to the pocket like a pen. Only the top of the knife was visible, and PO Husbands also saw the imprint of the knife in the pocket. PO Husbands removed the knife and placed it on the top of the vehicle. § 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)

A frisk is authorized when the member of the service reasonably suspects the person is armed and dangerous. This includes situations in which the officer reasonably suspect that the person has committed, is committing, or is about to commit a violent crime or when the officer observes something on the person that she/he reasonably suspects is a weapon, statements made by the suspect stopped that they are armed, or information known by the officer that the suspect may be carrying a weapon. During investigative encounters, when a frisk of an individual reveals an object that an officer reasonably suspects may be a weapon, the officer is permitted to search those interior portions of the individual's clothing to remove the weapon. Patrol Guide Procedure 212-11 (Board Review 30).

An officer may frisk a stopped individual if the officer reasonably suspects that the individual is armed and dangerous. People v. De Bour, 40 N.Y.2d 210 (Board Review 31).

An officer may not ask the occupants of a lawfully stopped vehicle if they possess weapons without founded suspicion that criminality is afoot. People v. Garcia, 20 N.Y.3d 317 (Board Review 40).

PO Husbands testified that he did not have any reason to frisk § 87(2)(b) aside from the fact that consent was given. Furthermore, PO Husbands's BWC video showed that § 87(2)(b) denied having any sort of weapons on his person. § 87(2)(b), § 87(2)(g)

PO Husbands asserted that he saw a knife clipped to § 87(2)(b)'s pocket, which was in full view to him when § 87(2)(b) exited the vehicle. § 87(2)(b) acknowledged having the knife on his person but denied that it was visible. The video evidence did not assist in revealing whether the knife was in plain view. § 87(2)(b), § 87(2)(g)

Allegation (I) Abuse of Authority: Police Officer Hinolito Inoa searched the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

According to § 87(2)(b) while he and the other occupants were outside of the vehicle, multiple officers searched the vehicle. § 87(2)(b) provided the officers with consent to search the vehicle. When asked where in the vehicle the officers searched, § 87(2)(b) stated it was "everywhere." Once the vehicle search was completed, PO Inoa instructed § 87(2)(b) and the other occupants to return inside of the vehicle and go to their seats. PO Inoa then asked § 87(2)(b) for his permission to search the trunk of the vehicle. § 87(2)(b) initially denied this request because his trunk was broken and would not lock once open. § 87(2)(b) then stated that he was scared to be shot because he was black, so he no longer wished to fight and provided permission to search the trunk. One of the officers pressed the button located on the trunk and opened it. § 87(2)(b) did not have any vision of what officers were doing inside of the trunk at the time and did not know which officers were involved. Nothing was taken from inside of the trunk. The trunk had some containers, but § 87(2)(b) did not know if officers searched the containers (Board Review 12).

§ 87(2)(b), § 87(2)(g) § 87(2)(b) added that he saw officers search the glove compartment, arm rest, and under the seats of the vehicle. § 87(2)(b) did not consent to the search of the vehicle. After the search, everyone was

placed back inside the vehicle, and PO Inoa requested to search the trunk. PO Inoa did not receive consent before he pressed a button, opening the trunk. Multiple officers searched the trunk (Board Review 13).

§ 87(2)(b), § 87(2)(g) § 87(2)(b) also stated that no consent was given to search the vehicle (Board Review 14).

In PO Inoa's BWC video, at 07m05s, PO Inoa asks § 87(2)(b) "Can you give me consent to make sure [indiscernible] inside of the car?" § 87(2)(b) responds, "Dude, go ahead," and gestures behind him. PO Inoa states, "If you give me consent, do you understand?" § 87(2)(b) then points back again and another officer states, "Yes or no?" § 87(2)(b) responds, "Go search the car." At 08m10s, PO Inoa goes to the front driver seat and opens the door. He then reaches inside with his right hand and picks up a bag. He points a light towards it and then leans closer inside. He proceeds to open the center console and shines his light inside there as well. PO Inoa then opens the driver side passenger door and leans inside. He pulls a bag onto the seat of the vehicle and shines his light towards it. He proceeds to open the bag and shines a light inside of it as well and rummages inside of it. He then flashes his light around the footwell areas and proceeds to walk around to the rear passenger side of the vehicle. He leans inside the vehicle again from there and briefly shines his flashlight inside of the vehicle. He finally goes to the front passenger seat, opens the door, and shines his light around the footwell area and center console area before stopping the vehicle search. PO Inoa has the occupants return into the vehicle and then approaches § 87(2)(b) again. At 10m20s, he asks § 87(2)(b) to open the trunk of the vehicle because he gave consent to search the vehicle. After a few moments, § 87(2)(b) tells PO Inoa to open the trunk himself. At 11m04s, PO Inoa presses a button on the trunk, and it opens. He moves objects around and looks into a few bags before finally checking the spare tire container. He then attempts to close the trunk but fails to do so (Board Review 02).

According to PO Inoa, once at the back of the vehicle, he asked § 87(2)(b) for consent to search his vehicle. PO Inoa asked for consent by stating something along the lines of, "Can you give me consent to search the car?" PO Inoa also informed the driver that if he said no, the vehicle would not be searched. PO Inoa explained that he needed to search the vehicle due to the way the occupants in the back of the vehicle were moving. PO Inoa further explained that the passengers in the back of the vehicle were moving around too much while PO Inoa communicated with the driver. Due to the way the passengers were moving, such as turning the body, PO Inoa was not sure if there were weapons or not inside of the vehicle. PO Inoa repeated that the movements raised his suspicions of the vehicle containing a weapon and possibly contraband. The driver of the vehicle immediately gave his consent to search the vehicle. PO Inoa conducted a search of the vehicle by looking under the seats, around the seats, and glove compartment for any weapons or contraband. PO Inoa believed that the vehicle had weapons and/or contrabands based on the passengers' movements alone. PO Inoa did not recall any occupant making any statements about weapons or contrabands at any point. Nothing was recovered from the search. The occupants were then placed back into the vehicle and PO Inoa opened the trunk of the vehicle. PO Inoa did not recall if he requested consent to open the trunk. PO Inoa searched the trunk for contraband and weapons. PO Inoa did not recover anything from within the trunk (Board Review 16).

When the passengers of a vehicle look behind themselves, stiffened up, and appear nervous, officers will not possess founded suspicion that criminality is afoot to justify a more intrusive inquiry. People v. Garcia, 20 N.Y.3d 317 (2012) (Board Review 40).

In order for an officer to request and obtain voluntary consent to search a subject, their vehicle, their property, or their home, the officer must first articulate to the subject of the search that they

are being asked to consent to such search voluntarily, knowingly, and intelligently, and explain that such search will not be conducted if they refuse to provide consent to such search. New York City Administrative Code 14-173 (Board Review 34).

Officers may request consent to search, and the consent must be voluntarily given. Officers must ask for consent to search in a manner that elicits a clear ‘yes’ or ‘no’ response. When seeking consent, make sure that the search will not occur if the person does not consent. Patrol Guide Procedure 212-11 (Board Review 30).

§ 87(2)(g)
[REDACTED] PO Inoa asked § 87(2)(b) for consent to search the vehicle, to which he provided an affirmative response.

§ 87(2)(b), § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation (J) Abuse of Authority: Police Officer Mohammad Abdelfattah damaged § 87(2)(b)'s property.

§ 87(2)(b) testified that he observed this encounter while walking on the street. § 87(2)(b) did not report any relationship to the persons involved in the vehicle stop. Once PO Inoa finished his search of the vehicle, PO Abdelfattah approached and attempted to close the trunk of the vehicle. He tried to close the trunk by repeatedly slamming it shut. Multiple officers attempted to close the trunk for approximately three minutes. PO Abdelfattah removed a pen knife/Swiss army knife from his belt and attempted to repair the trunk lock mechanism of the vehicle for approximately eight to nine minutes. § 87(2)(b) saw that PO Abdelfattah had cut the roof of the trunk and multiple cut wires (Board Review 11).

According to § 87(2)(b) he had informed PO Inoa initially that his trunk was broken and would not lock if it was opened. Once it was opened and searched, an officer attempted to close the trunk by slamming it shut continuously. The officers were not successful in any of their attempts to close the trunk. § 87(2)(b) initially stated that by slamming the trunk over and over, the lock that was on the trunk was broken. § 87(2)(b) had been in an accident before, and the officers did not physically damage his vehicle. However, they damaged the trunk when they opened it after § 87(2)(b) closed it after the older accident (Board Review 12).

In PO Abdelfattah's BWC video, at 13m18s, PO Abdelfattah approaches the open trunk of the vehicle and starts to pull the emergency latch that opens the trunk. After a few seconds, he slowly tries to close the trunk. The trunk does not close and PO Abdelfattah fiddles with the lock again while trying to close the trunk multiple times. At 14m46s, PO Abdelfattah pulls down the liner of the trunk and continues to try and fix the lock with his hands. At 15m31s, he takes out some tool and pulls open a small knife from it. PO Abdelfattah moves the knife towards the lock and fiddles with it, but it is not captured clearly on camera. At 17m03s, the lock is captured again. There appears to be no change to the lock. PO Abdelfattah tries to close the trunk again and fails to do so. At 19m16s, the camera captures PO Abdelfattah placing the tip of his knife into the lock mechanism before attempting to close it again. He fails to close the lock repeatedly. At 21m40s, PO Abdelfattah stops trying to fix the trunk. The trunk liner is misaligned, and the trunk remains open. No wires are cut (Board Review 05).

According to PO Inoa, he attempted to close the trunk of the vehicle after the search, but it would not remain closed. PO Inoa repeatedly attempted to close the trunk but failed for approximately 20 minutes. PO Inoa noticed prior damage in the rear of the vehicle involving dents and assumed that the trunk did not close due to damage done to the trunk. PO Inoa looked at the trunk lock and tried to see if it did not close due to the metal in order to try and lock the vehicle. The vehicle was not damaged when PO Inoa checked the lock and tried to close it. PO Inoa did not see any officer

attempt to fix the trunk or use a knife to fix the trunk. PO Inoa did not use a knife to try and fix the trunk (Board Review 16).

§ 87(2)(g)

§ 87(2)(b) e. PO Abdelfattah added that he used his multi-tool to try and fix the lever of the trunk lock but was not successful. PO Abdelfattah did not cut any wires or anything else while using the multi-tool (Board Review 17).

Although § 87(2)(b) alleged that PO Abdelfattah damaged the trunk of the vehicle by cutting the trunk roof and multiple wires, this is not seen in any BWC video. While BWC video did show that the trunk liner had been moved, it was not cut and there were no wires visible at the time PO Abdelfattah attempted to fix the trunk. Additionally, § 87(2)(b) stated that the vehicle had been in a prior accident and that the lock was already broken, preventing the trunk from locking. He also stated that the officers did not physically damage his vehicle. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

Allegation (K) Abuse of Authority: Sergeant Alex Ramos threatened to arrest an individual.

According to § 87(2)(b) there were two black men standing on the street, filming the entire incident. Another black man then arrived and started to walk along the street. PO Abdelfattah initially asked the man to go back on the sidewalk. The man questioned why and asked PO Abdelfattah what he would do about it. Sgt. Ramos then approached the man and informed him that he needed to get off the street. The man again asked what he would do about it, and Sgt. Ramos responded along the lines of, “I’m going to take you to jail.” Multiple vehicles were driving on the street at the time (Board Review 11).

The investigation was unable to interview the victim of this allegation as he remained unidentified.

In Sgt. Ramos’ BWC video, at 31m49s, a black man, standing in the roadway, appears in frame, apparently recording the incident. An officer is heard instructing the unidentified man to get out of the street. The man, who is standing in the middle of the street next to a stopped vehicle, responds, “And what’s gonna happen?” while remaining on the street. Sgt. Ramos walks up to the man and states, “You’re gonna get locked up.” The man refutes this, saying he will not get locked up as he walks away. Sgt. Ramos responds, “Trust me. You are.” Another unidentified man can be heard instructing the man on the street to get onto the sidewalk. The road is active as vehicles are seen driving on it once the streetlight turns green (Board Review 04).

In his statement to the CCRB, Sgt. Ramos stated that there were several other civilians present while the vehicle stop was being conducted, and that he interacted with several civilians who were recording the stop. The civilians were getting closer to the subject vehicle, so Sgt. Ramos informed the civilians that they could record, but had to remain on the sidewalk. One of the civilians returned to the sidewalk while another approached closely behind one of the 79th Precinct officers. Sgt. Ramos walked up to this civilian and informed him that he had to move. The civilian left

initially but returned, apparently recording while standing near the subject vehicle's rear bumper. Sgt. Ramos instructed the male to get on the sidewalk and told him that he was blocking traffic. Sgt. Ramos informed the civilian that if he did not get back on the sidewalk, he would be arrested (Board Review 18).

According to The Rules of the City of New York Sections 4-04(a), 4-04(b2), 4-04(c2), pedestrians shall be subject to traffic control signals and pedestrian control signals and to the lawful orders and directions of any law enforcement officer. Further, no pedestrian shall cross in front of oncoming vehicles. Lastly, no pedestrian shall cross any roadway at an intersection except within a crosswalk (Board Review 35).

Additionally, according to NYS Penal Law, Section 240.20(5), a person is guilty of Disorderly Conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof, he obstructs vehicular or pedestrian traffic. Disorderly conduct is a violation (Board Review 41).

Per Patrol Guide Procedure 208-01, officers may arrest without a warrant for an offense when reasonable cause to believe the offense was committed in his presence (Board Review 37).

§ 87(2)(b), § 87(2)(g)

Allegation (L) Abuse of Authority: Police Officer Mohammad Abdelfattah refused to provide his shield number to § 87(2)(b)

According to § 87(2)(b) he walked to the front of the stopped vehicle and asked PO Abdelfattah for his shield number. PO Abdelfattah provided the number "603" to § 87(2)(b). § 87(2)(b) believed this to be a false number because one of the civilians on the street stated he asked the same officer for his shield number and received a different number (Board Review 11).

In a cellphone video provided by § 87(2)(b) at 01m40s, § 87(2)(b) asks PO Abdelfattah for his badge number. PO Abdelfattah responds "603." A voice in the background is heard stating, "That's not his badge" (Board Review 08).

PO Abdelfattah's BWC video regarding this portion of the incident is identical to § 87(2)(b)'s video, just from PO Abdelfattah's point of view. At 26m08s, § 87(2)(b) is seen calling out to PO Abdelfattah and asking for his badge number. PO Abdelfattah responds, "603." § 87(2)(b) repeats the number back out and PO Abdelfattah confirms that's his number. Another male is heard saying that PO Abdelfattah stated something different ten seconds ago (Board Review 05).

An MOS search in the Complaint Tracking System indicated that PO Abdelfattah's badge number is 00603.

§ 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which all of the civilians involved in this incident have been a party (Board Review 38).
- PO Inoa has been a member of service for seven years and has been a subject in five CCRB complaints and 13 allegations, none of which were substantiated. § 87(2)(g)
- PO Husbands has been a member of service for four years and has been a subject in four CCRB complaints and nine allegations, of which one was substantiated:
 - 202105563 involved a substantiated allegation of a threat of force. The Board recommended Command Discipline B and the NYPD imposed no penalty.
 - § 87(2)(g)
- PO Abdelfattah has been a member of service for four years and a subject in three CCRB complaints and 22 allegations, of which two were substantiated:
 - 202103607 involved substantiated allegations of a strip search and discourteous language. The Board recommended charges and Command Discipline A and the NYPD has not yet imposed discipline.
 - § 87(2)(g)
- Sgt. Ramos has been a member of service for fourteen years and has been a subject in three CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

Squad: 3